

Law & Data — Closed Questions (with Answers)

Note to the reader. This document is a collage of closed questions drawn from previous academic years' exams, complete with their official answers as provided by the course professors; these should therefore be considered reliable. In some cases, a question lists more than four answer choices: this occurs when the same question appeared across multiple exam sessions with different answer options, which have been merged here for completeness. Be mindful that the exact phrasing and selection of questions in the actual exam may differ from what you find here; do not assume the formulations below will appear verbatim.

Correct answers are **bold** and marked with ✓. Some questions (up to 2 pts) have more than one correct answer.

1. The main difference between the EU and the US approaches to the legal regime of personal data is (up to 2 pts)
 - ✓ **that the EU treats personal data as an aspect of individual personality, whereas the US treats data as a market**
 - ✓ **that the EU treats personal data as an aspect of individual personality and dignity, whereas the US treats data as a market and relates to liberty**
 - that only the EU protects privacy
 - that only the US protect privacy
 - that only the US approach leverages individual consent to protect privacy
2. Correcting illegal bias in AI (2 pts)
 - is always legitimate
 - ✓ **must be done in a way that does not violate basic legal principles such as equality**
 - is legally impossible
 - can be done only by amending the algorithm or the dataset for the training
3. The processing of personal data pursuant to the GDPR may be lawfully carried out (2 pts)
 - ✓ **When data subjects expressed their own consent**
 - Based on the controller's free choice
 - ✓ **When there is no consent by data subjects, but the processing is needed for protecting the data subjects' or other individuals' vital interests**

- When there is no consent, but the processing must take place to perform a contract between the controller and any third party
4. Which of the following are legislative instruments belonging to EU primary law? (1 pt)
- Treaty of the European Union, Treaty on the functioning of the European Union, Case-law of the European Court of Justice
 - ✓ **Treaty of the European Union, Treaty on the functioning of the European Union, Charter of fundamental rights of the European Union**
 - Charter of fundamental rights of the European Union, Regulations, Case-law of the European Court of Justice
5. Which of the following answers is correct? (1 pt)
- (1) Primary Law, (2) Secondary Law, (3) International Agreements
 - ✓ **(1) Founding treaties, (2) International Agreements, (3) Secondary Law**
 - (1) Primary Law, (2) Secondary Law, (3) Member States law
6. Which of the following statements is correct?
- Freedom of thought cannot be affected by AI technologies
 - Freedom of thought is not considered as a human right in most jurisdictions
 - Freedom of thought deserves protection only once the individual shares his thoughts with others
 - ✓ **Freedom of thought is considered as a human right in most jurisdictions but hardly protected in itself**
7. Which of the following statements is correct? (up to 2 pts)
- EU regulations and directives must be directly applied in any of their provision in all Member States
 - ✓ **Regulations are directly applicable in all Member States as such, whereas directives need to be implemented by every Member State**
 - Directives are directly applicable in all Member States as such, whereas regulations need to be implemented by every Member State
 - ✓ **Regulations and directives are adopted by the EU legislator**
8. When the European Court of Human Rights rules that a State has failed to protect a right of an individual:
- The Court's ruling replaces the domestic rule that is incompatible with the European Convention of Human Rights
 - ✓ **It is up to the State to remove the violation of the European Convention**
 - The individual can sue the State in the European Court of Human Rights
9. The European Data Protection Supervisor is:

- A national authority supervising on data protection
- A supranational authority supervising on the activity of national supervisory authorities
- A supranational supervisor on any processing of personal data of Member States citizens
- ✓ **An independent body at the European level supervising on processing carried out by EU Institutions**

10. The European Data Protection Supervisor:

- gathers the European Data Protection Board and the National Supervisory Authorities
- is in charge for handling any report of personal data breach committed by any entity within the EU
- ✓ **is responsible for handling individuals' reports of data breaches committed by EU institutions only**

11. The European Data Protection Board is (2 pt):

- An institution provided for by the Treaty on the European Union
- An agency of the European Commission with the aim of protecting the fundamental right to data protection
- ✓ **An independent body gathering the national supervisory authorities of each EU member State**
- Vested with the power to decide over cases involving EU staff members in their personal data protection processing

12. The Charter of fundamental rights recognizes the right to privacy and the right to data protection to (1 pt):

- Only individuals with EU citizenship
- ✓ **All individuals provided that they are in the EU**
- Only EU companies

13. What is the difference between regulations and directives in EU law? (2 pts)

- Directives must be applied directly in all EU Member States as well as Regulations
- ✓ **Regulations are immediately enforceable, while directives need domestic execution**
- Regulations must be directly applied in every country, whereas Directives must be implemented by EU Member States to become applicable
- Regulations are binding, while directives are only exhortations
- Regulations establish rules, whereas directives introduce principles
- Regulations, as well as Directives, must be implemented by every Member State in order to be fully applicable
- There is no difference between the two notions

14. Social Credit Systems are:
- Intrinsically incompatible with basic legal principles
 - ✓ **Problematic insofar as they are opaque and have wide ramifications for the legal, economic, and social life of a subject**
 - Forbidden under Chinese law
 - Forbidden under U.S. Law
15. The EU Charter of fundamental rights expressly safeguards (up to 2 pts)
- The right of data controllers and processors to process anyone's personal data
 - ✓ **The right of individuals to personal data protection**
 - ✓ **The right of individuals to private and family life**
 - The right of individuals to process any other individuals' personal data
16. Should data controllers and data processors be separate entities, the GDPR sets out that (up to 2 pts):
- data controllers are totally free to indicate one or more data processors, the latter not being bound by any obligation towards data controllers
 - ✓ **their relationships need to be regulated by specific contractual agreements or by different acts provided for by law**
 - their mutual relationships need to be regulated only by an order of any competent National Supervisory Authority
17. What is the difference between synthetic and anonymized data? (2 pts)
- Anonymized data are covered by the GDPR, whereas synthetic data are not
 - ✓ **Anonymized data lose most details and are therefore less useful to train algorithms**
 - Synthetic data are covered by the GDPR, whereas anonymized data are not
 - Only anonymization can be reversed to reidentify individuals
18. Why is the protection of personal data insufficient to protect fundamental rights? (2 pt)
- Because it only covers specific countries; there is no macroregional standardized regulation
 - ✓ **Internet users cannot cope with massive consent requests when they visit websites**
 - Because AI doesn't use personal data
 - Because AI can be biased
19. The E-Privacy Directive (up to 2 pts):
- provides for personal data protection in processing activities carried out by EU institutions

- ✓ **needed to be implemented in any Member State**
 - was directly applicable in every Member State since its entry into force
 - ✓ **regulates personal data processing in connection with public communications services in public communications networks within the EU**
20. The European Electronic Communications Code (so-called Recast Directive) (up to 2 pts):
- deals with personal data processing activities in the communication industry
 - ✓ **aims at ensuring equal and fair access to electronic communications services, promoting at the same time connectivity across the EU**
 - ✓ **does not concern personal data processing activities**
21. What is the legal treatment of synthetic data? (2 pts)
- Synthetic data are protected by the GDPR.
 - ✓ **Synthetic data are not covered by the GDPR.**
 - Anonymized data are protected by the GDPR.
 - Synthetic data are prohibited under the GDPR.
 - Synthetic data and anonymized data are the same notion.
22. Why is the protection of personal data so important? (2 pt)
- Because the EU does not protect synthetic data
 - ✓ **The protection of personal data usually serves to protect people from manipulation and exploitation**
 - Because AI does not need personal data
 - Because AI can be biased.
23. A Data Protection Impact Assessment under the GDPR is (2 pts):
- compulsory only when the appointment of a DPO is required by law
 - ✓ **compulsory only in specific cases expressly set out by law**
 - mandatory for any kind of processing activities involving non personal data
 - compulsory for every kind of processing activities involving personal data
24. A data controller is (up to 2 pts):
- discretionally entitled to reject a data subject's request to access their personal data
 - always required to grant access to a data subject's personal data by anyone requesting it
 - ✓ **under an obligation to grant access to personal data concerning a specific data subject requesting it, unless otherwise set out by law**
 - ✓ **required to grant access to personal data to subjects other than the data subject, when set forth by law**

- required to grant access to personal data only when data subjects submitted a related request also to the data processor
25. The AI Act is (up to 2 pts):
- A soft law legal instrument offering guidelines for using AI
 - ✓ **A hard law regulation adopted by the EU**
 - An international convention governing the use of AI worldwide
 - An act adopted by the EU which third countries will be obliged to adopt
 - ✓ **A regulation adopted by the EU which might influence extra-EU countries in adopting similar legislation**
26. The Brussels Effect means that (2 pts):
- All economic operators coming from outside the EU are bound to comply with EU law
 - Many third countries will be legally required to adopt the same legislations adopted by Belgium
 - ✓ **Some extra-EU legal systems adopted, or will likely adopt, legislations similar to those firstly adopted by the EU**
 - Some third countries will conclude international conventions with the EU for applying EU legislation
27. Which of the following statements is false? (up to 2 pts)
- ✓ **The GDPR applies only to EU citizens within the EU**
 - The GDPR applies to any data subject within the EU
 - The GDPR applies to data controllers incorporated in third countries when they operate in the EU
 - ✓ **The GDPR does not apply to data controllers incorporated in third countries when they process personal data belonging to EU citizens**
28. The 2014 judgment issued by the European Court of Justice in case *Google Spain* (C-131/12) (up to 2 pts):
- paved the way to recognize the right to personal data protection in the EU Charter of Fundamental Rights
 - ✓ **paved the way to include the right to be forgotten in the GDPR as one of the rights recognized to the data subject's benefit**
 - ✓ **originated from a preliminary ruling proceedings referred to the ECJ by a Spanish court**
 - paved the way to include the right to be forgotten in the GDPR as one of the rights recognized to the data controller's benefit
29. Which is the correct order of the following sources of EU law in the EU related hierarchy (from the top to the bottom)? (2 pts)

- Regulations/Directives, International Agreements, Charter of Fundamental Rights, Decisions
- Founding Treaties/Charter of Fundamental Rights, Regulations/Directives
- ✓ **Founding Treaties/Charter of Fundamental Rights, International Agreements, Regulations/Directives**